

2. Why the proposed amendments are necessary and proper;
3. When the facts giving rise to the proposed amendment were discovered; and
4. The reasons why the request for amendment was not made earlier. (*California Rules of Court, Rule 3.1324(b)*).

Failure to satisfy these procedural requirements offers independent and sufficient grounds for the denial of a motion for leave to amend.

The Court has reviewed the supporting Declaration of Matthew C. Seymour and finds that it fails to satisfy the mandatory criteria of California Rules of Court, Rule 3.1324(b) (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). While the declaration outlines the general purpose and effect of adding the limitation of liability claim, it is completely silent as to when the "facts" giving rise to the proposed amendment were first discovered (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Crucially, the declaration fails to provide any reasonable explanation as to why the request for amendment was not made earlier during the preceding two and a half years of active litigation (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Because the contract has been known and available to Albus since April 2021, the procedural requirements of Rule 3.1324(b) cannot be satisfied. This procedural deficiency constitutes an independent basis for denying the motion. For the reasons set forth above, the Court finds that the proposed amendment adds no real utility to the action, is sought after an unreasonable and prejudicial delay on the eve of trial, and fails to comply with the mandatory procedural requirements of California Rules of Court, Rule 3.1324.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE 3RD AMENDED COMPLAINT

Tentative Ruling:

Defendant Universal Protection Service, LP.'s Motion to Strike is granted without leave to amend.

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud,

malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

REQUEST FOR JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of a June 15, 2026 tentative ruling as to Defendant's Motion to Strike Portions of Plaintiff's Second Amended Complaint, which became the ruling of the Court the following day on June 16, 2026. Since the Court adopted the tentative ruling as its final ruling on the motion, the Court can take judicial notice of it. (RNJ, Ex. 1.) (Ev. Code §§ 452, 453.)

MERITS

It is undisputed that the motion contains a typographical error as to two of the six portions of the TAC which are requested to be stricken:

First, Plaintiff references Item 1 – Page 7, Paragraph 25. Indeed, Plaintiff is correct. While UPS' quoted portion of this paragraph is largely correct, Plaintiff has properly pointed out that the final 6 words appear to have been removed from the TAC. Specifically, the allegation is the same except that now Plaintiff does not allege that the same "demonstrate[es] conscious disregard for resident safety." Given that Plaintiff acknowledges removal of that portion of her allegation, *UPS withdraws its request to strike the remainder of that paragraph.*

Second, Plaintiff references Item 2 – Page 9, Paragraph 34. The quote contained in UPS's Motion is as follows:

"Defendants' conduct as alleged herein was despicable and carried out with willful and conscious disregard for the rights and safety of Plaintiff, warranting an award of punitive damages under Civil Code § 3294. These decisions were made, authorized, or ratified by officers, directors, or managing agents of said corporate Defendants with advance knowledge and conscious disregard for the safety of Plaintiff and other minor residents, in violation of Civil 25 Code § 3294(b)."

Plaintiff points out that the TAC, instead, is phrased as:

"Defendants' conduct as alleged herein was despicable and carried out with willful and conscious disregard of the rights and safety of Plaintiff M.A. and other minor residents of Canyon Lake, warranting an award of punitive damages under Civil Code § 3294. The decisions described herein were made, authorized, or ratified by officers, directors, or managing agents of the corporate Defendants, in willful and conscious disregard of the safety of Plaintiff M.A. and other minor residents, within the meaning of Civil Code § 3294(b)."

However, as noted by UPS, the only substantive difference between the two is that the SAC alleged "advanced knowledge" whereas the TAC does not. However, the

substantive arguments to strike remain the same, rendering the typographical error inconsequential.

ACTUAL KNOWLEDGE

Plaintiff's highlights an allegation that Mimms' ineligible for rehire designation was immediately visible in his WinTeam personnel file. However, Plaintiff's specific allegation that Mimms' WinTeam personnel file was the "identical file accessed by [UPS's] management when processing his re-absorption into the workforce" does not, as Plaintiff argues, adequately allege that this designation was "open in front of [UPS] personnel" nor that any individual ever saw it. Plaintiff's allegation is that UPS re-absorbed Mimms "without reviewing its own WinTeam records." This is an allegation that UPS had *constructive knowledge*, or should have known, that Mimms was designated ineligible for rehire, which is relevant as to negligence but insufficient to establish conscious disregard.

To satisfy the punitive damage pleading requirements under section 3294, a plaintiff must plead specific facts which detail, at a bare minimum, what the defendant knew about the alleged acts that harmed plaintiff, how the defendant knew it, and the manner in which the defendant consciously disregarded plaintiff's rights or safety despite its knowledge. (*Foy v. Greenblott* (1983) 141 Cal.App.3d 1; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864; see *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22 [striking punitive damages that were mere conclusions of knowledge, conscious disregard, malice and oppression without supporting facts].)

As noted by UPS, Plaintiff cites *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867, to support the argument that merely alleging knowledge, the power to act on that knowledge, and a failure to act are enough to support a claim for punitive damages. However, in *Lackner v. North* (2006) 135 Cal.App.4th 1188, the Court specifically stated that, in order to justify an award of punitive damages, a plaintiff must establish that the defendant "was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (Id. at 1211.) (citations omitted.) Awareness, in other words, is a subjective state, not a constructive one. *Penner* is wholly distinct from the circumstances presented by Plaintiff's TAC. In *Penner*, the Court specifically noted that: "Because Defendants were aware of (1) crimes in the apartment building and apartments thereof which were caused, invited, encouraged, and/or permitted by the conditions of the premises, (2) tenant reports of crime on the premises, (3) tenant complaints regarding the unsecure and inadequate conditions on the premises which permitted free access to the premises and said criminal activity, (4) express tenant requests for and the obvious need to repair, change, and/or take corrective measures with regard to the inadequate security conditions of the premises, including free access to the premises, and (5) the nature of the neighborhood itself, including the occurrence of criminal activity therein; defendants knew or, in the exercise of reasonable care, should have known that the conditions on the premises made it foreseeable that criminals and intruders would gain access to and commit crimes on said premises, attack tenants, and/or future crime would occur on the premises exposing tenants to the foreseeable unreasonable risks of harm which constituted a threat to the safety of any and all persons on or using said premises, thus

constituting special circumstances giving rise to a duty of care on the part of Defendants, and each of them, to take appropriate security measures for the protection of their business invitees and tenants, including plaintiff.” (Id. at 863-864.)

Ultimately, to establish advanced knowledge of “unfitness” under Civil Code section 3294(b), that unfitness must bear some rational connection to the type of harm that ultimately occurred. Here, however, Plaintiff has not alleged a single fact that would create any knowledge of a risk of sexual assault on the part of Mimms. The TAC still does not allege the nature of the 2019 policy violation that led to termination. An employee who was terminated for things such as tardiness, uniform violations, or administrative infractions, would not thereby be rendered “unfit” in a manner that would put an employer on notice of a risk of sexual predation. Without alleging the specific basis for the 2019 termination, let alone that UPS knew the specific basis for said termination, Plaintiff asks the Court to infer that any prior termination, for any reason, constitutes advanced knowledge of unfitness for purposes of punitive damages — a standard no California court has adopted.

Plaintiff also cites to *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1160 to establish that a failure to place “reports of misconduct” in an employee’s personnel file “so as to warn future supervisors of that conduct” in and of itself demonstrates a conscious disregard for the rights and safety of others. However, in *Weeks*, the Court was specifically addressing a scenario where the employer was “well aware that [Defendant] was likely to create a hostile work environment for women” and then, “consistently failed to take measures reasonably designed to protect women from his abuse. (Id.) In other words, the “reports” were of the exact same type of misconduct (sexual harassment) as was at issue in that case.

Here, there is simply no allegation that anything in the 2019 termination, or any of the subsequent disciplinary record, related in any way whatsoever to sexual misconduct, interactions with minors, or predatory behavior. Indeed, there is not even an allegation that Plaintiff or her family raised any complaint during Mimms’ employment.

Plaintiff relies on a premise that if an employee receives discipline for attendance and a bad attitude, allowing that individual to remain employed as a security officer demonstrates unfitness for the purposes of punitive damages in a sexual assault case. Per the above, this is not the law. As alleged, absent specific knowledge alleged on the part of UPS, Plaintiff is seeking punitive damages based on allegations of negligence which is insufficient to justify an award of punitive damages.

FAILURE TO REVOKE ACCESS

Plaintiff contends that the allegation that, after Mimms’ termination, UPS “took no steps to revoke his access,” created a foreseeable risk that residents would be harmed. However, there is no allegation that UPS could have prevented Mimms’ access to the property under the actual circumstances presented here. Plaintiff has not alleged (nor could she) that Mimms’ continued access was under that granted to him by virtue of his employment. Further, Plaintiff has not alleged that UPS did not revoke his employment access to the property, nor that at any time after his termination Mimms accessed the

property wearing a UPS uniform or purporting to be an employed security guard for the property. Instead, reading the allegations, Plaintiff has alleged that Mimms retained an unspecified means of access to the property which UPS did not revoke. Presuming Plaintiff is alleging that it was UPS who allowed Plaintiff access, and not a resident, Plaintiff is at best alleging an administrative failure to deactivate an access credential. Absent any allegation that UPS knew Mimms was utilizing that access to harm anyone, the allegation, at most, goes to negligence, not despicable conduct for purposes of punitive damages.

CORPORATE RESPONSIBILITY

To state a claim for exemplary damages against a business entity for the acts of its employees, a plaintiff must allege the company's: (1) "advance knowledge of the unfitness of the employee," (2) "authoriz[ation] or ratification of the wrongful conduct," or (3) "personal guilt of oppression, fraud, or malice." (Civ. Code § 3294(b).) As set forth above, Plaintiff has failed to allege advanced knowledge on the part of UPS.

Plaintiff's Opposition essentially conceded that there is no factual allegation that would support punitive damages for oppression, fraud, or malice on the part of an officer, director or managing agent of UPS because Plaintiff cannot identify who that individual would be. This is not a peripheral detail but, instead, the entirety of the section 3294(b) corporate liability theory.

The TAC names Kiet Phan as "Director of Operations" but does not allege he personally made, authorized, or ratified the deployment decision as to Mimms, nor that he had any knowledge of Mimms' history. Instead, Plaintiff argues that alleging "operations executives" possessing "substantial discretionary authority" established a policy of deploying re-absorbed personnel without reviewing their WinTeam records. As noted by Defendant UPS, this is a legal conclusion dressed up in organizational-chart language. Under *White v. Ultramar* (1999) 21 Cal.4th 563, 577, the question is whether a specific individual exercised substantial independent authority and not whether a generic category of unnamed executives theoretically could have. Plaintiff merely alleging a policy vacuum and attributing it to unidentified "executives" – on information and belief alone – cannot satisfy section 3294(b). Plaintiff concedes this point by citing to *Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, in that, while there is no subsequent appellate history in that case as Plaintiff represents, the general demurrer was overturned but the motion to strike allegations of exemplary damages was granted. (Id at 617.)

Further, Plaintiff has failed to confront the Court's prior ruling on UPS' previous Motion to Strike which found that "there cannot be any argument that [UPS] could repudiate the conduct of Defendant Mimms because, at the time that conduct was discovered by Allied, Mimms had not been an employee for many months and had already been criminally charged." Plaintiff again falls back on an argument that UPS was required to conduct some unspecified "investigation" of an employee who had long since been terminated and who was already in police custody absent being found to have ratified that alleged conduct. Defendant UPS is right that this is simply counter to the English

language and to law. As pointed out by the Court, no such argument can be reasonably made, and Plaintiff's Opposition proves the point.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402579	ZMILY vs ZMILY	MOTION TO QUASH DEPOSITION SUBPOENAS

Tentative Ruling: Appearances required.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600770	SINGH vs UNIVERSAL PROTECTION SERVICE LP	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CMC and this Hearing is continued to 1026/26 as Plaintiff requested, and the court agrees, for the opportunity to do limited discovery regarding the execution of the arbitration agreement.

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent's signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all claims that Plaintiff may have against Defendant and Defendant may have against Plaintiff, which could be brought in a court of law, unless otherwise set forth in the